

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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MIASIA GONZALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER  
SERGEI VOROBYEV, Shield No. 19401, NYPD POLICE  
OFFICERS JOHN/JANE DOES NUMBERS ONE  
THROUGH TEN,

Defendants.  
----- X

**SUMMONS**

Index No.:

The Basis of Venue is:  
Location of Incident

Plaintiff designates Bronx  
County as the place of trial.

**To the above named Defendants:**

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
September 15, 2022

Yours, etc.  
  
\_\_\_\_\_  
Gabriella Orozco, Esq.  
Shulman-Hill, PLLC  
Attorneys for Plaintiff  
1 State Street Plaza  
15<sup>th</sup> Floor  
New York, New York 10004  
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER SERGEI VOROBYEV, Shield No. 19401, 41<sup>st</sup> Precinct, 1035  
Longwood Ave, The Bronx, NY 10459

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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MIASIA GONZALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER  
SERGEI VOROBYEV, Shield No. 19401, NYPD POLICE  
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Defendants.

----- X

**INDEX NO.:**

VERIFIED COMPLAINT

**JURY TRIAL DEMANDED**

Plaintiff MIASIA GONZALEZ, by her attorneys, Shulman-Hill, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 26, 2022, at approximately 12:05 a.m., Plaintiff Miasia Gonzalez, while lawfully in the vicinity of Southeast Corner of Fox Street and East 163 Street, County of Bronx, State of New York, was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. Plaintiff was deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and her constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

**PARTIES**

2. Plaintiff Miasia Gonzalez is a resident of the state of Connecticut.

3. New York City Police Officer Sergei Vorobyev, Shield No. 19401, is and was at all times relevant herein an Officer with the New York City Police Department.

4. New York City Police Officer Sergei Vorobyev, Shield No. 19401, is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Officer Sergei Vorobyev, Shield No. 19401, was assigned to the 41<sup>st</sup> Police Precinct of the NYPD.

6. New York City Police Officers John/Jane Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John/Jane Does #1-10 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

11. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on August 4, 2022.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### STATEMENT OF FACTS

15. On March 26, 2022, at approximately 12:05 a.m., Plaintiff was present in the vicinity of Southeast Corner of Fox Street and East 163rd Street, County of Bronx, State of New York, when Defendant Officers handcuffed, searched and arrested Plaintiff without legal justification.

16. Plaintiff was attending a party hosted by a friend from high school

17. The party extended from inside to outside the house and music was playing.

18. Two Defendant officers arrived at the residence, stood outside by the front door, and instructed the party attendees to leave the residence.

19. Plaintiff was in the basement at the time the Defendant officers arrived and heard from other individuals the Defendant officers were instructing everyone to leave.

20. Plaintiff complied with the Defendant officers' demands and left the house.

21. Several other Defendant officers remained outside of the house on the front lawn.

22. Plaintiff asked the officers why they were arresting people and she was told to "mind her own business and get off the block".

23. Plaintiff again complied with the officers' requests and proceeded to walk down the block with her friend.

24. Plaintiff and her friend stopped on the corner to wait for the Uber car they requested.

25. While waiting, Plaintiff was lawfully dancing with her friends who were also on the corner.

26. Approximately fifteen uniformed Defendant officers were standing a few feet from the corner, observing Plaintiff and other individuals who had also just left the party.

27. The Defendant officers continued to demand that Plaintiff and the other individuals get off the block.

28. Plaintiff expressed to the Defendant officers she is waiting for an Uber that she called to that corner as the pickup location.

29. The Defendant officers disregarded Plaintiff's response and again instructed her to get off the block.

30. Approximately fifteen Defendant officers started walking towards them causing Plaintiff and her friend to walk away and the remaining individuals to run down the block.

31. As she was walking away, one Defendant officer came up behind Plaintiff and attempted to grab her right arm.

32. As a result, Plaintiff began to walk away more quickly but not before, upon information and belief, Defendant officer Sergei Vorobyev, Shield No. 19401, forcefully threw Plaintiff to the ground, and caused her to land on her back on the hard cement.

33. Plaintiff was on the ground when approximately three more Defendant officers mounted her and kicked and hit her in her back and neck for no less than two minutes.

34. The Defendant officers handcuffed Plaintiff while she was on the ground.

35. The Defendant officers demanded that she get up but Plaintiff could not get up as her back was in excruciating pain.

36. Once Plaintiff was finally standing, the Defendant officers threw her into the patrol car.

37. Despite Plaintiff's pleas for information, none of her assailants told her what she was being arrested for.

38. Plaintiff was transported to the 41<sup>st</sup> Precinct.

39. Plaintiff asked the Defendant officers if she could receive medical attention because she was in pain but was told it would halt the arrest process and she would be detained longer.

40. As a result, Plaintiff did not receive medical treatment.

41. Plaintiff continued to ask why she was arrested, but the Defendant officers instructed her to stop talking.

42. Plaintiff was picked up off the ground and taken to the bathroom to get strip searched.

43. A female Defendant officer conducted the unlawful and invasive strip search of Plaintiff.

44. Plaintiff remained at the 41<sup>st</sup> Precinct for approximately four hours.

45. Plaintiff was transported to Central Booking and remained there for approximately 20 hours.

46. When Plaintiff arrived at Central Booking she again requested medical treatment but was told the same thing as before.

47. While Plaintiff was in custody, the Defendant police officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime, specifically, Criminal Possession of a Weapon in the 4<sup>th</sup> Degree, Criminal Mischief and Disorderly Conduct.

48. Eventually Plaintiff was arraigned and released on her own recognizance.

49. After her release, Plaintiff went home in severe pain, and when she went to lie down, she learned that she could not due to the pain.

50. As a result, Plaintiff sought medical treatment for her neck and back at Lincoln Hospital, where she was given pain medication.

51. Plaintiff's pain persisted for weeks after the incident, which prompted her to seek further treatment.

52. Plaintiff learned she had a bulging disc and a torn ligament on her lower cervical spine.

53. Plaintiff started physical therapy because of the assault.

54. Plaintiff lost her job because of the assault.

55. All charges against Plaintiff were dismissed and sealed on or about July 7, 2022.

56. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

57. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

58. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

59. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

60. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Negligence**

61. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

62. Defendants owed a duty of care to Plaintiff.

63. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by pushing Plaintiff to the ground and injuring her back and neck.

64. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

65. All of the foregoing occurred without any fault or provocation by Plaintiff.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **SECOND CAUSE OF ACTION**

#### **Unlawful Stop, Question, and Search**

69. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

70. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

71. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

72. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

### **THIRD CAUSE OF ACTION**

#### **Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty**

75. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

76. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

77. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

### **FOURTH CAUSE OF ACTION**

#### **False Imprisonment**

78. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

79. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

80. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

### **FIFTH CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force**

84. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

85. The use of excessive force by defendants by, amongst other things, roughly handcuffing, grabbing and pushing Plaintiff onto the ground and throwing Plaintiff into the cop car causing injury to Plaintiff's back and neck constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

86. Defendants were at all times agents, servants, and employees acting within the scope of her employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

### **SIXTH CAUSE OF ACTION**

#### **Assault**

87. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

88. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

89. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### SEVENTH CAUSE OF ACTION

#### **Battery**

93. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

94. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner, roughly handcuffing, grabbing and throwing Plaintiff multiple times and causing injury Plaintiff's back and neck brutally effecting an arrest of Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

95. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### EIGHTH CAUSE OF ACTION

#### **Negligent Infliction of Emotional Distress**

99. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

100. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

101. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

102. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

104. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

105. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

#### **NINTH CAUSE OF ACTION**

##### **Negligent Hiring, Retention, Training and Supervision**

106. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

107. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

108. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

#### **TENTH CAUSE OF ACTION**

##### **Failure to Intervene**

109. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

110. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

111. Defendants failed to intervene to prevent the unlawful conduct described herein.

112. As a result of the foregoing, Plaintiff's suffered serious, debilitating injury, her liberty was restricted for an extended period of time, she was put in fear of her safety, her injuries worsened, she did not receive necessary medical treatment, and she was humiliated and subject to other physical constraints.

113. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

115. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

#### ELEVENTH CAUSE OF ACTION

##### **Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process**

117. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

118. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

119. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

120. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

121. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

122. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

123. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

124. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

125. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

### **TWELFTH CAUSE OF ACTION**

#### **Malicious Prosecution**

126. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

128. Defendants commenced and continued a criminal proceeding against Plaintiff.

129. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

130. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

### **THIRTEENTH CAUSE OF ACTION**

#### **Deliberate Indifference to Medical Needs**

131. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

132. Defendants despite being aware that Plaintiff's back and neck were in excruciating pain and required medication and additional treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

133. The delay in medical treatment to Plaintiff's injuries resulted in a Plaintiff needing to go to the hospital and physical therapy for weeks, increased severity in Plaintiff's

injuries were suffered by Plaintiff that would have been prevented if Plaintiff received treatment in a timely manner.

134. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

135. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

136. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

137. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

#### **FOURTEENTH CAUSE OF ACTION**

##### **Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

138. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

139. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

140. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

141. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing her detention for approximately 24 hours in total.

142. The Defendant officers caused Plaintiff to be subjected to excessive force.

143. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

#### **FIFTEENTH CAUSE OF ACTION**

##### **Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

144. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

145. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

146. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

147. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

148. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

149. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

#### **SIXTEENTH CAUSE OF ACTION**

#### **City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

126. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

128. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

129. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing her detention for approximately 24 hours.

132. The Defendant officers caused Plaintiff to be subjected to excessive force.

133. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

### **SEVENTEENTH CAUSE OF ACTION**

#### **City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

134. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

135. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

136. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

137. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

138. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

139. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

140. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

141. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

### **EIGHTEENTH CAUSE OF ACTION**

#### **Violation of Article I, § 12 of the New York State Constitution**

150. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

151. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

152. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

153. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

154. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

### JURY DEMAND

142. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

### PRAYER FOR RELIEF

**WHEREFORE**, Plaintiff MIASIA GONZALEZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York  
September 15, 2022

By: *Gabriella Orozco*  
Gabriella Orozco, Esq.  
Shulman-Hill, PLLC  
*Attorneys for Plaintiff*  
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New York, New York 10004  
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER SERGEI VOROBYEV, Shield No. 19401, 1035 Longwood Ave, The  
Bronx, NY 10459

ATTORNEY'S VERIFICATION

**GABRIELLA OROZCO**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
September 15, 2022

  
\_\_\_\_\_  
GABRIELLA OROZCO